



## Income Tax Department

Ministry of Finance, Government of India

### Penalty for failure to furnish statements, etc.

461. (1) Where a person, who is required to deliver or causes to be delivered a statement prescribed in section 397(3)(b),—

- (a) fails to do so within the time prescribed in the said section; or
- (b) furnishes incorrect information in the said statement,

the Assessing Officer may impose on such person, a penalty of a sum which shall not be less than Rs. 10000 but which may extend to Rs. 100000.

(2) No penalty shall be levied under sub-section (1)(a) for delay in filing or non-filing of statement referred therein, if the person proves that—

- (a) tax deducted or collected along with the fee and interest, if any, was paid to the credit of the Central Government; and
- (b) the said statement was also delivered or cause to be delivered before the expiry of one month from the time prescribed in section 397(3)(b).

